

JUSTIFICATION REVIEW DOCUMENT

NATIONAL GUARD BUREAU
111 South George Mason Drive
Arlington, VA 22204-1373



I. OVERVIEW

a. Program/Equipment Name b. Amount *(Total price/cost to include options.)*
Spiral 4 Wireless Services [REDACTED]

Authority

10 USC 3406(c)(5) as implemented in FAR 16.505(b)(2)(i)(G) For DoD, NASA, and the Coast Guard, the order satisfies one of the exceptions permitting the use of other than full and open competition listed in 6.302 (10 U.S.C. 3406(c)(5)). The public interest exception shall not be used unless Congress is notified in accordance with 10 U.S.C. 3204(a)(7).

d. Technical Representative

Name	Title	Email	Phone	Date
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	May 01, 2025

e. Contracting Officer *(Populates from the KO signature field.)*

Name	Title	Email	Phone	Date
[REDACTED]	Contracting Officer	[REDACTED]	[REDACTED]	[REDACTED]

☐ Requirements Representative *(If different from Technical Representative.)*

☐ Prepared by *(If different from Contracting Officer.)*

II. REVIEWS

I have reviewed this justification and find it adequate to support other than full and open competition.

☒ Program Manager *(If applicable.)*

Name	Date	Phone	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

☐ Program Executive Officer *(When item is Program Executive Officer managed.)*

Controlled by: Blake S. Cromer

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CUI Category: SOURCE SELECTION

Limited Dissemination Control: FEDCON

POC: [REDACTED]
(Populates from the KO signature field.)

Justification for an Exception to Fair Opportunity

Instructions

Local Control Number

NGB Control Number (if applicable)

25-06

N/A

1a. CONTRACTING ACTIVITY

USPFO-SC W912QG

b. Requiring Activity

SCARNG DOIM

c. POC

2a. NATURE OF ACTION

Public interest.

b. Contract Action

New Contract

c. Contract Type

Firm Fixed Price

d. Fund Type

O&M, Army

3a. ESTIMATED TOTAL PRICE OF REQUEST (including options, if any)

b. If Applicable, Estimated Price of Supplies/Services

4a. Name of Requirement

Spiral 4 Wireless Services

b. Description of Requirement

Wireless Services for the South Carolina Armory National Guard

c. Demonstrate, in Detail, Why This Specific Item or Service, is the Only One That Meets Your Requirements

For DoD, NASA, and the Coast Guard, the order satisfies one of the exceptions permitting the use of other than full and open competition listed in 6.302 (10 U.S.C. 3406(c)(S)). Specifically, FAR 6.302-1 Subparagraph (a)(2)(iii) states that services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any source would result in

(A) Substantial duplication of cost to the Government that is not expected to be recovered through competition; or

(B) Unacceptable delays in fulfilling the agency's requirements.

In this case, the agency has determined that award to a source other than the incumbent would result in an unacceptable delay in fulfilling the agency's requirements. The processing of devices acquired under the incumbent contract is approximately 50% complete since the awarding of that task order in May 2024. This is a process that must be performed by agency personnel and cannot be completed by any of the contract vendors. Awarding to a new vendor would require the agency to reprovision the current phones by agency personnel and the re issue the phones individually by appointment. This downtime would result in an unacceptable delay in fulfilling the government's mobile requirements and significantly impairs the command and control of the organization during; emergencies, weekend training, annual training and hurricane season which begins 1 June 2025. In addition, the 43rd Civil Support Team (CS) which conducts Weapons of Mass Destruction (WMD) missions, is on call 24/7 to support local, state and federal entities and a disruption in service would significantly degrade their support capability. Past history has shown that when a new vendor is awarded an order, the transfer process takes approximately 3 months however, this is really dependent on how well the incoming and outgoing vendors cooperate together to complete the transfer process which is why the SCARNG is currently at approximately 50% complete from May 2024.

5a. HAS THIS BEEN PREVIOUSLY PROCURED?

☒ Yes, details are below.
 ☐ No.

b. Contract Number

N0024418D0003/W912QG-24-F-0009

c. Date

April 17, 2024

d. Competitive Status

Competitive

e. Authority Previously Cited (if OTF&O)

N/A

f. Summary of "Actions to Increase Competition" and an explanation of the results.

The incumbent contract was competed under Spiral 3 to all vendors.

g. If previously used "Full and Open Competition" explain what changes causing this to now have limited sources.

Because of the complexity of switching from one provider to another, the SCARNG is approximately 50% complete (almost 1 year from the incumbents award date) in the transfer from the previous carrier to fully Verizon. This sole source will reduce the need to incur unnecessary administrative costs to the start the lengthy process over again.

h. Provide an explanation of any unusual patterns that may be revealed by the history, e.g., several consecutive, urgent buys.

The same process as explained in 4.c. is incurred every time a different wireless provider is chosen causing the Government to spend duplicate efforts, time and money, provisioning phones from the outgoing carrier to the new carrier.

i. If a justification was prepared to support the procurement made before this one, briefly describe the circumstances justifying the procurement and whether there have been any significant changes.

N/A

j. Provide any other facts necessary to justify limiting competition that were not previously stated.

The success of an agency quickly transferring phones from the incumbent vendor to the new vendor is determined by the level of cooperation between the two carriers. A lack of urgency and cooperation is the driving force behind this sole source.

6a. AUTHORITY CITED

10 USC 3406(c)(5) as implemented in FAR 16.505(b)(2)(i)(ed in 6.302 (10 U.S.C. 3406(cG) For DoD, NASA, and the Coast Guard, the order satisfies one of the exceptions permitting the use of other than full and open competition list)(5)). The public interest exception shall not be used unless Congress is notified in accordance with 10 U.S.C. 3204(a)(7).

b. Reason for Authority Cited [?]

Because of the complexity of switching from one provider to another, the SCARNG is approximately 50% complete (almost 1 year from the incumbents award date) in the transfer from the previous carrier to fully Verizon. This sole source will reduce the need to incur unnecessary administrative costs to the start the lengthy process over again. In addition, a sole source will avoid additional delays in meeting the Government's needs especially dealing with the upcoming Hurricane Season which begins 1 June 2025 and other planned training events. This is important because the agency can avoid Porting numbers from the current carrier to the new carrier which historically can take 2 weeks to 3 months or longer.

7. POSTING REQUIREMENTS

The Congress shall be notified in writing of such determination not less than 30 days before award of the contract (FAR 6.302-7(c)(2)). Post the justification within 14 days after contract award on SAM for a minimum of 30 days (FAR 6.305).

8. CONTRACTING REQUIREMENTS

a. Efforts to Obtain Competition [?]

DoD, CIO Memorandum, dated 23 May 2024, Subject: DoD UNCLASSIFIED Wireless Mobile Services and Devices Spiral 4 directs all components to utilize the Spiral 4 program managed by the Navy. There are 7 IDIQ FFP Contracts that must be utilized for Task Orders for new purchases.

b. Actions to Increase Competition [?]

All future requirements will be handled on a case-by-case basis to ensure the best procurement approach is taken to minimize the disruption to the SCARNG mission.

c. Market Research [?]

The requiring activity and contracting activity have conducted market research among the DON Spiral 4 multiple award contractors. For reasons discussed previously in section 4, it is not in the best interest of the government to transition the current devices to a new wireless services provider because no source other than Verizon Wireless were found capable of providing the required services without substantial duplication of costs to the government or causing unacceptable delays.

d. Interested Sources [?]

There are 7 approved IDIQ contracts that shall be utilized by all DoD agencies. However, only Verizon the current incumbent can meet the needs of the agency quickly with out substantial duplication and disruption of services at a crucial time of year as the start of hurricane season is one month away.

e. Other Facts [?]

N/A

9. REQUIRING ACTIVITY CERTIFICATION

Technical and Requirements

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Name

Date

Title

Phone

Email

10. REVIEW

Chief of the Contracting Office (CoCO) ☐ Acting as.

I have reviewed this justification and find it adequate to support other than full and open competition. See comments below. (Field will expand as needed.)

Name

Date

Phone

11. APPROVAL

Contracting Officer (KO)

1. I hereby determine that the anticipated cost to the government for this contract action will be Fair and Reasonable.

2. I certify that this Justification is accurate and complete to the best of my knowledge and belief.

(This certification shall be made by the contracting Officer who will sign the contract resulting from this Justification and Approval.)

Name

Date

Phone

Blake S. Cromer

May 01, 2025

803-299-1537

Email

blake.s.cromer.civ@army.mil

CROMER.BLAKE.S
TUART.1060976640

Digitally signed by
CROMER.BLAKE.STUART.106097664
0
Date: 2025.05.06 15:36:09 -0400

12. REDACTION INSTRUCTIONS

After completion and signatures, print to PDF. In Adobe, Redact items such as, but not limited to:

1. Dollar amounts.
2. Names.
3. Signatures.
4. Proprietary information.

FAR 5.401, FAR 24.1, and FAR 24.2